

		Plaintiff's Requests for Judicial Notice are GRANTED. The Court notes, however, that a "court may take judicial notice of the [e]xistence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments." (People v. Franklin (2016) 63 Cal.4th 261, 280.) In addition, while "Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, [they] do not take judicial notice of the truth of the factual matters asserted in those documents." (Dominguez v. Bonta (2022) 87 Cal.App.5th 389, 400, as modified (Jan. 6, 2023) [emphasis in original].) The parties shall also be prepared to discuss the status of Case No. 2024 01408741 and whether this case should be stayed pending the resolution of Case No. 2024 01408741. Defendant to give notice 3. Case Management Conference
106	Bake & Rockfield, LLC vs. Monopoly Business Park Association 22-01243053	1. Motion for Entry of Judgment Plaintiff Bake & Rockfield, LLC ("Plaintiff") moves for an order entering judgment in its favor against defendant Monopoly Business Park Association ("Association") on Plaintiff's Declaratory Relief cause of action pursuant to the Court's November 14 and 18, 2025 Orders. The Court's November 14 and 18, 2025 Orders provide: 1. The Association is obligated pursuant to the Declaration of Covenants, Conditions and Restrictions ("Project Declaration") to maintain the Common Area pursuant to the terms of the Project Declaration and Section 5.2 of Article 5 of the General Conditions, as

	Amended by Section 8(c) of the Additional Provisions of the Ground Lease, dated June 15, 1979. 2. The Court has the authority to hear evidence and decide if the Association met the standards for maintenance, repair, and replacement and will provide the Association's board the benefit of discretion only after the Association establishes it has performed a reasonable investigation and that the option it is choosing meets or exceeds the standards, and the Court has the authority to determine what is needed to meet the standards and to issue a Writ of Mandamus directing that such work be performed and the Association members be assessed to perform such work. 3. Defendants' Motion Re: Capital Improvements and Motion in Limine No. 1 To Exclude All Evidence and Testimony Concerning the Replacement of Capital Improvements are DENIED. The Association is obligated to maintain, repair, and replace all common area components regardless of whether such maintenance, repair, and replacement involves a common area component that might be considered a capital improvement and the Association cannot avoid its obligation by arguing that the assessments are "Capital Improvement Assessments." In its Declaratory Relief cause of action, Plaintiff seeks a judgment declaring: a) that the scope of the Association's maintenance, repair, and replacement obligations encompasses the Needed Work alleged in the Complaint; b) the Association has the power and obligation to levy assessments upon Members in an amount sufficient to promptly perform the Needed Work and must enforce any such assessments through all legal means available and pursue and collect any unpaid amounts owing; c) the Association has a present and continuing duty to perform sufficient budgetary and reserve analyses and discharge its maintenance, repair, and replacement obligations under the Project Declaration and levy assessments; and d) the
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	Association has a present and continuing duty to enforce the provisions of the Project Declaration relating to the non-maintenance related covenants complained of by Plaintiff in this action. Plaintiff asserts that it makes no sense to proceed to trial on the question of whether repairs proposed by the previous board members meet the maintenance, repair, and replacement standards because Plaintiff's officers now occupy two of the three board seats. Plaintiff contends that the foundational determination of the Association's obligations should be reduced to a judgment and said judgment should avoid possible later litigation on the same issues. By arguing that it makes no sense to proceed to trial on whether repairs proposed by the previous board, Plaintiff impliedly concedes that its Declaratory Relief cause of action is moot as to the issue of whether the scope of the Association's maintenance, repair, and replacement obligations encompass the Needed Work raised in the Complaint, given that Plaintiff now exercises majority control over the Association. Plaintiff nevertheless requests judgment on the Declaratory Relief cause of action which states in generic terms that the Association is obligated to maintain the Common Area pursuant to the terms of the Project Declaration and Section 5.2 of Article 5 of the General Conditions, as Amended by Section 8(c) of the Additional Provisions of the Ground Lease regardless of whether such maintenance, repair, and replacement involves a common area component that might be considered a capital improvement. Plaintiff contends a judgment would avoid future litigation. However, controversies that are conjectural or only anticipated to occur in the future do not qualify for declaratory relief. (Wilson & Wilson v. City Council of Redwood City (2011) 191 Cal.App.4th 1559, 1582.) What Plaintiff seeks by its Motion is essentially protection from possible future issues regarding the Association's maintenance, repair, and replacement standards. This is
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		not proper grounds for a judicial declaration. (See id. at p. 1583.) In light of the above, the Motion is DENIED. Moving party to give notice 2. Order to Show Cause re: Appointment of Counsel re: Monopoly Business Park Association
107	Szeto vs. Woo 19-01087212	Motion to Clarify and Enforce Fee Awards Plaintiff/cross-defendant Gene Szeto moves for an order clarifying the Court’s February 3, 2026 order granting him attorney’s fees and setting a deadline for the payment of the award. Szeto argues that a set date for payment is required to prevent EQD LLC and Kent Salveson from evading payment by arguing that there is no due date. The Motion is unopposed and GRANTED. The February 3, 2026 award of attorney’s fees and costs to Szeto with regard to his anti-SLAPP motion against EQD LLC and Salveson’s Cross-Complaint is to be paid within 60 days of the date of this order. Moving party to give notice.
108	Wells Fargo Bank, N.A. vs. Thru Trading Inc. 23-01311998	Motion Directing Distribution of Interpleaded Funds Defendant/cross-complainant Cheryl R. Royce (“Defendant”) moves for an order directing that the interpleaded funds deposited with the Court by plaintiff Wells Fargo Bank, N.A. (“Wells Fargo”) be distributed to her in light of the judgment entered in her favor on her Cross-Complaint against cross-defendant Thru Trading, Inc. (“Thru Trading”). An interpleader action has two phases. In the first phase, the trial court determines the right of the